Rahul Aggarwal & Ors vs State Of Nct Of Delhi & Ors on 12 September, 2025

$~71
* IN THE HIGH COURT OF DELHI AT NEW DELHI

+ W.P.(CRL) 2959/2025, CRL.M.A. 27452/2025 & CRL.M.(BAIL) 1907/2025
RAHUL AGGARWAL & ORS. .....Petitioners
Through: Mr. Sumit Rana, Mr. Siddhant Tyagi & Ms. Bhumika Aggarwal, Advs.
P3 (through VC)
versus
STATE OF NCT OF DELHI & ORS. .....Respondents
Through: Ms. Rupali Bandhopadhyay, ASC for the State with Mr. Abhijeet Kumar & Ms. Amisha Gupta, Advs.
SI Sunil Hooda, PS-Paschim Vihar West
Mr. Vivek Shokeen & Mr. Shekhar Yadav, Advs. for complainant
R2 to R6/Victims in person

CORAM:
HON'BLE MR. JUSTICE AMIT MAHAJAN
ORDER

% 12.09.2025

1. The present petition is filed seeking quashing of FIR No. 347/2025 dated 15.08.2025, registered at Police Station Paschim Vihar West, for the offences under Sections 110/ 126(2)/ 324(4)/ 3(5) of the Bharatiya Nyaya Sanhita, 2023 ('BNS'), including all consequential proceedings arising therefrom.

2. It is alleged that on 08.08.2025, a quarrel took place between the parties due to some monetary issues, which escalated into a scuffle. It is alleged that Petitioner Nos. 1 and 3 attacked This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 15/09/2025 at 22:52:02 Respondent No.2 with a brick, due to which, he sustained an injury on his head. Petitioner No.2 also hit Respondent No.2 with an iron rod. Respondent Nos. 3 to 6 are the friends of Respondent No.2

who were present at the time of the altercation and also sustained minor injuries. This led to registration of the above- mentioned FIR.

3. The learned counsel for the petitioners submit that the parties are acquainted to each other and the altercation arose due to a petty monetary transaction. He submits that the petitioners have since apologised for their conduct and they undertake to not indulge in such activities in the future.

4. The present petition is filed on the ground that the matter is amicably settled between the parties by way of Memorandum of Settlement dated 09.09.2025, out of their own free will, without any force, coercion or misrepresentation.

5. Out of the entire settlement amount of 11,00,000/-, a sum of 1,00,000/- is paid in cash and the balance sum of 10,00,000/- is paid by way of two demand drafts of 5,00,000/- bearing nos. 507376 and 507377 respectively, both dated 09.09.2025 drawn on ICICI Bank. In terms of the settlement, certain cheques and one key of the car has also been handed over to the learned counsel for the petitioner.

6. Petitioner Nos. 1 and 2 are stated to be in judicial custody in the present case. Petitioner No. 3 appears through video- conference and Respondent Nos. 2 to 6 are present in person. The parties have been duly identified by the Investigating Officer.

7. On being asked, Respondent Nos. 2 to 6 submit that they are satisfied with the settlement and since the quarrel happened This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 15/09/2025 at 22:52:02 due to the financial transactions, they do not wish to pursue any proceedings arising out of the present FIR. They further submit that they have no objection if the same is quashed.

8. Offences under Sections 115(2)/126(2)/ 324(4) of the BNS are compoundable and offences under Sections 110 of the BNS is non-compoundable.

9. It is well settled that the High Court while exercising its powers under Section 528 of the Bharatiya Nagarik Suraksha Sanhita, 2023 ('BNSS') [erstwhile Section 482 of the Code of Criminal Procedure, 1973] can quash proceedings in which offence is non-compoundable on the ground that there is a compromise between the accused and the complainant. The Hon'ble Apex Court has laid down parameters and guidelines for High Court while accepting settlement and quashing the proceedings. In the case of Narinder Singh & Ors. v. State of Punjab & Anr. : (2014) 6 SCC 466, the Hon'ble Supreme Court had observed as under :-

> "29. In view of the aforesaid discussion, we sum up and lay down the following principles by which the High Court would be guided in giving adequate treatment to the settlement between the parties and exercising its power under Section 482 of the Code while accepting the settlement and quashing the proceedings or refusing to

accept the settlement with direction to continue with the criminal proceedings:

29.1. Power conferred under Section 482 of the Code is to be distinguished from the power which lies in the Court to compound the offences under Section 320 of the Code. No doubt, under Section 482 of the Code, the High Court has inherent power to quash the criminal proceedings even in those cases which are not compoundable, where the parties have settled the matter between themselves. However, this power is to be exercised sparingly and with caution.

29.2. When the parties have reached the settlement and on that basis petition for quashing the criminal proceedings is filed, the guiding factor in such cases would be to secure:

(i) ends of justice, or This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 15/09/2025 at 22:52:02

(ii) to prevent abuse of the process of any court.

While exercising the power the High Court is to form an opinion on either of the aforesaid two objectives.

29.3. Such a power is not to be exercised in those prosecutions which involve heinous and serious offences of mental depravity or offences like murder, rape, dacoity, etc. Such offences are not private in nature and have a serious impact on society. Similarly, for the offences alleged to have been committed under special statute like the Prevention of Corruption Act or the offences committed by public servants while working in that capacity are not to be quashed merely on the basis of compromise between the victim and the offender.

29.4. On the other hand, those criminal cases having overwhelmingly and predominantly civil character, particularly those arising out of commercial transactions or arising out of matrimonial relationship or family disputes should be quashed when the parties have resolved their entire disputes among themselves.

29.5. While exercising its powers, the High Court is to examine as to whether the possibility of conviction is remote and bleak and continuation of criminal cases would put the accused to great oppression and prejudice and extreme injustice would be caused to him by not quashing the criminal cases."

(emphasis supplied)

10. Similarly, in the case of Parbatbhai Aahir & Ors. v. State of Gujarat & Anr. : (2017) 9 SCC 641, the Hon'ble Supreme Court had observed as under :-

> "16. The broad principles which emerge from the precedents on the subject, may be summarised in the following propositions:
>
> 16.1. Section 482 preserves the inherent powers of the High Court to prevent an abuse of the process of any court or to secure the ends of justice. The provision does not confer new powers. It only recognises and preserves powers which inhere in the High Court.
>
> 16.2. The invocation of the jurisdiction of the High Court to quash a first information report or a criminal proceeding on the ground that a settlement has been arrived at between the offender and the victim is not the same as the invocation of This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 15/09/2025 at 22:52:02 jurisdiction for the purpose of compounding an offence. While compounding an offence, the power of the court is governed by the provisions of Section 320 of the Code of Criminal Procedure, 1973. The power to quash under Section 482 is attracted even if the offence is non- compoundable.

16.3. In forming an opinion whether a criminal proceeding or complaint should be quashed in exercise of its jurisdiction under Section 482, the High Court must evaluate whether the ends of justice would justify the exercise of the inherent power.

16.4. While the inherent power of the High Court has a wide ambit and plenitude it has to be exercised (i) to secure the ends of justice, or (ii) to prevent an abuse of the process of any court.

16.5. The decision as to whether a complaint or first information report should be quashed on the ground that the offender and victim have settled the dispute, revolves ultimately on the facts and circumstances of each case and no exhaustive elaboration of principles can be formulated.

16.6. In the exercise of the power under Section 482 and while dealing with a plea that the dispute has been settled, the High Court must have due regard to the nature and gravity of the offence. Heinous and serious offences involving mental depravity or offences such as murder, rape and dacoity cannot appropriately be quashed though the victim or the family of the victim have settled the dispute. Such offences are, truly speaking, not private in nature but have a serious impact upon society. The decision to continue with the trial in such cases is founded on the overriding element of public interest in punishing persons for serious offences.

16.7. As distinguished from serious offences, there may be criminal cases which have an overwhelming or predominant element of a civil dispute. They stand on a distinct footing insofar as the exercise of the inherent power to quash is concerned.

16.8. Criminal cases involving offences which arise from commercial, financial, mercantile, partnership or similar transactions with an essentially civil flavour may in appropriate situations fall

for quashing where parties have settled the dispute.

16.9. In such a case, the High Court may quash the criminal This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 15/09/2025 at 22:52:02 proceeding if in view of the compromise between the disputants, the possibility of a conviction is remote and the continuation of a criminal proceeding would cause oppression and prejudice; and 16.10. There is yet an exception to the principle set out in propositions 16.8. and 16.9. above. Economic offences involving the financial and economic well-being of the State have implications which lie beyond the domain of a mere dispute between private disputants. The High Court would be justified in declining to quash where the offender is involved in an activity akin to a financial or economic fraud or misdemeanour. The consequences of the act complained of upon the financial or economic system will weigh in the balance."

(emphasis supplied)

11. It is stated that the parties are acquaintances and they have since settled the dispute amicably. Keeping in view the nature of the dispute and that the parties have amicably resolved their disputes, this Court feels that no useful purpose would be served by keeping the dispute alive and continuance of the proceedings would amount to abuse of the process of Court. I am of the opinion that this is a fit case to exercise the discretionary jurisdiction under Section 528 of the BNSS.

12. However, keeping in mind the fact that the State machinery has been put to motion, ends of justice would be served if the petitioners are put to cost.

13. In view of the above, FIR No. 347/2025 and all consequential proceedings arising therefrom are quashed, subject to payment of total cost of 30,000/- by petitioners to be deposited with the Delhi Police Martyrs' Fund, within a period of four weeks from date.

14. Let the proof of deposit of cost be submitted to the concerned SHO.

15. Since the present FIR is quashed, the concerned Jail This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 15/09/2025 at 22:52:02 Superintendent is directed to forthwith release Petitioner Nos. 1 and 2 on the strength of the present order.

16. The present petition is allowed in the aforesaid terms.

AMIT MAHAJAN, J SEPTEMBER 12, 2025 "SS"

This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 15/09/2025 at 22:52:02